

SENATE BILL 1940

By Hensley

AN ACT to amend Tennessee Code Annotated, Title 15,
Chapter 2, relative to days of special observance.

WHEREAS, our nation's founding document recognizes that we are endowed by our Creator with certain unalienable rights and that among these rights are life, liberty, and the pursuit of happiness; and

WHEREAS, the right to life is the first unalienable right recognized in our Declaration of Independence; and

WHEREAS, the freedom and liberty we treasure as Americans rest upon our commitment to the protection of the sanctity of life; and

WHEREAS, the United States Supreme Court improvidently issued its ruling in *Roe v. Wade*, 410 U.S. 113 (1973) on January 22, 1973, preventing Tennessee and other states from extending the protection of its laws to unborn children; and

WHEREAS, on January 13, 1984, President Ronald Reagan issued Proclamation 5147, recognizing that in the aftermath of the United States Supreme Court's ruling in *Roe v. Wade* on January 22, 1973, more than 15 million unborn children had lost their lives due to legalized abortion; and

WHEREAS, in Proclamation 5147 President Reagan designated January 22 as National Sanctity of Human Life Day; and

WHEREAS, the United States Supreme Court reversed *Roe v. Wade* in *Dobbs v. Jackson Women's Health Organization*, 597 U.S. 215 (2022), and affirmed that Tennessee and other states may extend the protection of its laws to unborn children; and

WHEREAS, Tennessee extended the protection of its laws to unborn children immediately upon the reversal of *Roe v. Wade* by the United States Supreme Court under *Dobbs*; and

WHEREAS, Tennessee remains committed to the values and freedoms enshrined in our nation's founding document, including the unalienable right to life; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 15, Chapter 2, is amended by adding the following as a new section:

January 22 of each year is observed as "Sanctity of Life Day" so that Tennessee may renew its commitment each year to protect the sanctity of life, and to honor the lives of those unborn children lost to legalized abortion.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.